PRAYER SERIES AT TIFERET EYAL

Prayer and Torah: Why Do We Read the Torah in Shul?

Prayer Series, Part 5

Series: Prayer Series (Tiferet Eyal, 2021-22) **Shiur:** Part 5 of the six-part Prayer Series, given by Dayan Daniel Kada on Zoom for Tiferet Eyal, Tuesday 11 January 2022

These notes are based on an automatic transcript of the recording.

Recap and Plan

Before the break the series covered the history and theology of prayer (Part 1), the Siddur from Modeh Ani to Yishtabach (Part 2), the Shema and its blessings (Part 3), and the Amidah and the customs of its repetition (Part 4). Recordings are available on request.

Tonight: **the Torah within our tefillah**, its origins, the halachot and minhagim of the reading, with a focus on **women and children** being called up, and a closing thought for **Tu BiShvat**.

Part 1: Reading the Torah in Public

The Torah is central to our faith because it is **our constitution**. It is the covenant between Hashem and Israel and records the duties and obligations of that covenant. Where does the Torah itself speak of reading the whole Torah publicly?

- **Hakhel** (as Flora answered). In **Parashat Vayelech**, before he dies, Moshe instructs that every seven years the Torah be read before the whole people, **men, women and children**. Hence the name: to gather everyone.
- **Ezra.** In the fifth century BCE, when Ezra led the exiles back from Bavel to Yerushalayim, he organised a public reading of the Torah on Rosh Hashanah. The people had completely forgotten the Torah in Bavel. They had married out; they didn't know what Sukkot was. Ezra read the Torah to them to bring them back to practice.

So public reading goes back as far as Moshe, and runs through our history.

Part 2: Shabbat, Monday and Thursday

An institution of Moshe

The **Rambam (Hilchot Tefillah, chapter 12)** writes:

> משה רבנו תקן להם לישראל **Shabbat, Monday and Thursday** mornings, so that they should not go **three days without hearing Torah**. And **Ezra** instituted reading at **Mincha on Shabbat** as well.

The source is the **Gemara in Bava Kama**, which derives it from a verse in that week's parashah (Beshalach). After the splitting of the Red Sea, Israel **went three days in the wilderness and found no water**. The Gemara explains: they went three days without Torah, and so they began to complain. Moshe therefore instituted that they should never go three days without Torah. Read on Monday, Thursday and Shabbat, and three days never pass.

Some poskim hold that reading the Torah is a biblical mitzvah. The Rabbi did not think the Rambam held that; he saw it as an institution from the time of Moshe, but not necessarily a biblical obligation.

The Gemara then asks: if Moshe instituted it, how can the Mishnah attribute the reading to Ezra, a thousand years later? It answers that **Ezra elaborated** and "added some flesh" to Moshe's original institution.

Why Monday and Thursday?

If the point is not to go three days without Torah, why not Shabbat, Tuesday, Thursday? Or Shabbat, Sunday, Wednesday? **Rashi** explains, based on the Midrash: after the sin of the Golden Calf, it was on a **Thursday** that Hashem told Moshe to ascend Sinai to receive the second tablets, and forty days later, on a **Monday**, he came down. Those were days of **atonement and forgiveness**, so they are auspicious, and the Hachamim chose them.

Shabbat Mincha: Ezra's addition

The Gemara gives Ezra's reason for the Shabbat afternoon reading in two words: **משום יושבי קרנות**, "because of those who sit in the corners." What does that mean?

Interpretation	Who are the *yoshvei keranot*?	Why read on Shabbat afternoon?
Rashi	People busy with work all week who don't come to shul on Monday and Thursday	To compensate them with an extra reading. So all of us, even if we heard the Torah on Monday and Thursday, listen again on Shabbat afternoon because of those who don't come during the week
The Meiri (on Bava Kama)	People who, on Shabbat afternoon, with no work, just eat, drink and idle the afternoon away	To add some Torah to the Shabbat afternoon, so people use their time wisely

The commentators ask on Rashi: if the point is not to go three days without Torah, how does a Shabbat afternoon reading help someone who still goes all week without? The Rabbi found the Meiri "makes much more sense." Remember that in those days the reading was not "just a procession: we take it out, we read it, we put it back away." There was a **targum** and an explanation. "It was like a shiur almost."

Part 3: From Reading to a Yearly Cycle

Moshe and Ezra instituted **that** the Torah be read, but set no quota or specific portion. About 2,000 years ago, at the beginning of the period of the Mishnah, two customs developed:

Place	Custom
Bavel (the main centre)	Complete the Torah **every year**
Eretz Yisrael	Complete the Torah **every three years**. This was certainly the common minhag there until at least the sixth or seventh century, and there is evidence that in **Egypt** it was still done as late as the **twelfth century**, about 900 years ago

By the thirteenth or fourteenth century, every community had adopted the annual cycle.

Parashah or sidra?

The weekly divisions, Bereshit, Noach, Lech Lecha, are relatively new. In the Torah itself a **parashah** is really a new paragraph in the text. The Ashkenazi term **sidra**, the organised order for completing the Torah, is "a bit more precise," but Sephardim call it the parashah.

Simchat Torah: "the most misunderstood festival"

"There is no such festival called Simchat Torah, just so you should know... There is no festival anywhere in Torah, Mishnah, Gemara called Simchat Torah."

What we call Simchat Torah is really **the second day of Shemini Atzeret**, just as every festival in the diaspora has a second day. Once communities everywhere were completing the Torah at this time of year, the second day of Shemini Atzeret, "which is anyway quite boring," with no sukkah or matzah of its own, became a celebration of completing the Torah. The **Hatan Torah** and **Hatan Bereshit** are fourteenth- and fifteenth-century developments. A thousand years ago there was no Simchat Torah; it is an innovation of the time of the Rishonim.

Out of interest: some **Reform** communities use a three-year cycle "loosely based" on the old Yerushalayim practice, but differently. To keep Simchat Torah annually, they read the first third of every parashah in year one, the second third in year two, and the final third in year three. The old custom simply read the Torah through in order over three years.

An obligation on the community, not the individual

The poskim explain that Kriat HaTorah is a **חובת הציבור**, an obligation on the congregation, not on each individual. Some consequences:

- **The coming Pesach (2022):** the eighth day of Pesach falls on Shabbat. In Israel there is no eighth day, so they will already read the next parashah. Someone flying to Israel in the week after Pesach will miss a parashah. It is advisable to read it yourself, but there is no obligation to hear it.
- **Someone who must leave in the middle of the reading** has no obligation to hear the part he missed.

Question: if an entire community went to Israel and returned, would it need to catch up? It depends on how you define a community, which is hard today. In a village with one shul, if the whole community went away, the Rabbi would agree. But if one London synagogue goes, "the community is still London." He mentioned the discussion after the first lockdown,

when the whole of England missed many parashiyot: some said one must restart from where reading stopped and catch up; others said just start from where you are up to.

Part 4: Aliyot

How many

The **Mishnah in Megillah** sets the number of aliyot:

Day	Aliyot
Weekdays (Monday, Thursday)	3
Rosh Chodesh	4
Yom Tov	5
Yom Kippur	6
Shabbat	7

On Yom Tov, Yom Kippur and Shabbat you may not do fewer, but you **may add** (**מוסיפין עליהן**), which is why we have extra call-ups then. On weekdays and Rosh Chodesh the Hachamim did not allow additions, because it would burden the community; people are busy.

Kohen and Levi

The first two aliyot go to the **Kohen** and **Levi**. The Gemara derives this from the word **וקדשתו**, "you shall sanctify him": there is a positive commandment to honour a Kohen in various ways, one of which is the first aliyah. And since Moshe gave the Torah to the Kohanim and the Levi'im together, the Levi follows the Kohen.

Can a Kohen forgo the first aliyah? Generally a Kohen may waive his privileges, for example to be served first at a meal or to lead Birkat HaMazon. But for the Torah reading the Gemara says **he may not**, because people might murmur that he isn't a real Kohen, perhaps a *chalal*. He may, however, **leave** the room of his own accord. "What's incorrect, by the way, is to pressure a Kohen to leave. That's absolutely wrong."

A Talmid Hacham before an ignorant Kohen?

There is a major dispute among the Rishonim whether the order Kohen, Levi, Yisrael applies when a Talmid Hacham is present.

- **The Rambam** held strongly that it does not. The Kohen goes first to honour him and to prevent rivalry, but when a Hacham is present, he takes precedence. He wrote very sharply against the custom of giving an ignorant Kohen precedence over a Yisrael who is a Talmid Hacham.
- **The Shulchan Aruch** writes that **the minhag has developed** to call the Kohen first even if he is ignorant. The very fact that he calls it a minhag shows, "beneath the lines," that there were those who opposed it. "But in any case, that's become the minhag today."

The Spanish and Portuguese on Simchat Torah call up the **Hatan Bereshit first and the Hatan Torah second**, even if they are Yisraelim and Kohanim are present. "When I first saw this minhag a few years ago, I was quite shocked." On investigation it seems to rest on this idea: the Hatanim are meant to be the Hachamim of the day, with a special connection to the Torah. Another reason given is that we assume the Kohen forgoes his right. "It's very difficult," but that is its basis.

When there is no Kohen

- **A Levi may be called first** in place of a Kohen. Rashi brings two opinions; the **Shulchan Aruch** codifies that a Levi has no right to it but may be called up.
- **Never call a Levi after a Yisrael** who replaced the Kohen, as it implies the Yisrael was a Kohen.
- **Never call two Kohanim or two Levi'im in a row**, as people will say one of them is not genuine. (A Kohen or Levi may be called for a later aliyah such as the seventh, but never, for example, a Levi for the third.)

Eve: when there is no Levi, why is the same Kohen called again, and why does he say the bracha again? Because there is no other option. A different Kohen would imply the first wasn't real; a Yisrael would imply the Kohen was really a Levi. So the same Kohen is called a second time.

Part 5: Women and Aliyot

The Gemara and the Shulchan Aruch

"Believe it or not," there is an explicit Gemara in **Megillah**:

תנו רבנן: הכל עולין למנין שבעה, ואפילו קטן ואפילו אשה. אבל אמרו חכמים: אשה לא תקרא בתורה מפני כבוד הציבור. Everyone counts towards the seven aliyot, even a child and even a woman. But the Hachamim said a woman should not read in the Torah because of **kevod hatzibur**, the honour of the congregation.

Some people, even some who consider themselves Orthodox, argue that women can be called up. The key question is what *kevod hatzibur* means.

What is *kevod hatzibur*?

Participants suggested it shames the men, implying they can't read, and someone raised **yuhara**, pretentiousness, which "is such a concept," but the Rabbi preferred the first answer.

1. Humiliation of the congregation: the Ritva and Rabbeinu Avraham Min HaHar. Most Rishonim do not explain the term. The **Ritva** (Rabbi Yom Tov of Seville, thirteenth century) and **Rabbeinu Avraham Min HaHar** of Provence both explain that it is humiliating for the congregation, because it implies the men cannot read and depend on a woman to read for them.

This must be understood in historical context. In the time of the Mishnah and Gemara there was no *ba'al koreh*: whoever was called up read his own portion. Calling up a woman to read implied that no man in the community was proficient. Even if the men were capable, "it doesn't look good. It looks like the men are ignorant."

2. Immodesty: the Levush. The **Levush** (sixteenth century, one of the early Acharonim) says it is **pritzut**, immodest, for a woman to be called up in the presence of men. But the Rishonim do not say this, and given that the earlier authorities explain *kevod hatzibur* as humiliation, "I think it's quite a stretch for this to be the correct interpretation."

3. *Kol isha*? "Absolutely incorrect." Some have argued recently that the concern is *kol be'isha ervah*, the prohibition on men hearing a woman sing. That is clearly wrong. First, if that were the reason, the Gemara would have said so. Second, as **Hacham Ovadia Yosef** and many others rule, **reading the Torah is not singing**. It is melodious, a chant of the *te'amim*, but it is not song. Hacham Ovadia notes that strictly speaking (*me'ikar hadin*) **a woman may read the Megillah for men**, since men and women have the same obligation to hear it. We don't do this today for other reasons, but no one ever suggested it was a problem of *kol isha*.

"But today no one reads his own aliyah"

So *kevod hatzibur* is about the embarrassment of the men relying on a woman. Some argue today, "and I believe incorrectly," that since people called up no longer read for themselves but rely on the Rabbi or hazan, the concern no longer applies.

Why does the Shulchan Aruch record it at all?

The **Shulchan Aruch** quotes the Gemara almost verbatim: everyone counts towards seven, even a woman and a child, but the Hachamim said not to because of *kevod hatzibur*. The Talmud gives history; the Shulchan Aruch is a halachic code. If we don't call women up, why tell us that in principle they can be? Two fascinating answers:

- **Hacham Ben Zion Abba Shaul** suggests, and ends with *tzarich iyun*, that it may apply to a **family minyan**. Imagine a grandmother's 80th birthday, with a Sefer Torah brought to her home for a Shabbat morning service with children and grandchildren. There is no congregation and no implication that "the men are so illiterate here," so perhaps it would be permissible. He doesn't say to go and do it.
- **Hacham Ovadia Yosef** points to the halacha that once someone has been **called up by name, he must go up**, or people will start rumours that he isn't really Jewish. So if a warden wanting to cause trouble called up a woman by her full name, she would then be obliged to take the aliyah. "It would be wrong for the person to call her up. But now that she's been called up, it would then be the right thing for her to have the aliyah. I think that's fascinating."

Today

The reality is that Orthodox communities don't do this, even though one could argue *kevod hatzibur* no longer applies:

1. **Minhag.** Many minhagim remain even when the original reason no longer applies, like the Ashkenazi custom of **kitniyot**, which arose from medieval concerns about grains being mixed. Once something is ingrained in our identity and the structure of our service, it has a quasi-halachic status.
2. **Meta-halachically**, women's aliyot have become a political issue, sometimes championed by people who may not always have pure motives.

Rav Moshe Feinstein on a woman wearing a tallit

The Rabbi again quoted this responsum: may a woman wear a tallit? It is a positive time-bound mitzvah, from which women are exempt, but so are sukkah, shofar and lulav, which women do perform. **Rav Moshe Feinstein** answers: **yes**, if she does it because she genuinely feels it brings her closer to Hashem. But if she does it because she feels lower than men, "men got the mitzvah, I didn't get the mitzvah," that is effectively saying God was wrong, and then she may not.

"We believe that men and women have different roles... on the same level. Same level doesn't necessarily mean that they have to have the identical roles."

Flora was not sure, as a woman, that she would accept that answer. The Rabbi acknowledged it is difficult, and restated his two points: this is unheard of in our tradition, and its associations today are sometimes the problem. A test of sincerity: would she wear the tallit at home, alone, praying Shacharit? "If she does that, then fine, then obviously it's genuine."

Children's aliyot and the Haftarah were left for the following week.

Part 6: A Thought for Tu BiShvat

Tu BiShvat, falling that Sunday night and Monday, is "a purely halachic day" that has taken on meaning over the last few hundred years. It is about **fruit, not vegetables**, and the Torah distinguishes between them.

- Before the sin, Adam is told he may eat from **all the fruit of the trees**. Nothing about vegetation.
- After the sin, his curse: **thorns and thistles**, and **you will eat the herb of the field**. The **Gemara in Pesachim** says that when Adam heard this his eyes streamed with tears: "I am going to end up eating the same food as my donkey."

Why is that a curse? The **Maharal of Prague** explains that **אדם** is named after the **אדמה**, the earth. A patch of bare earth looks lifeless; dig as much as you like and you find only soil. But drop in a seed, nurture it, and flowers and even huge trees grow out of that seemingly lifeless clod. Earth has tremendous hidden potential. By contrast **בהמה**, an animal, is **בה מה**, "what is in it is what it is": what you see is what you get. A human being nurtured in intellect and character can grow and release the fruits within him.

The same difference separates fruit from vegetables:

Vegetable	Fruit tree
Cut and consumed, and nothing is left	What you see is a tiny fraction: take the fruit and the whole tree remains
No further produce	Even the fruit holds a seed that can produce more

Man's proper state is the **pri**, the fruit, with a vast reserve of potential waiting to be actualised. When Adam sinned he fell to the level of an animal, and his diet fell to vegetation. Even in English, a person alive but with no mental capacity, *bar minan*, is called "a vegetable." "It would just sound wrong to call such a person a fruit," because fruit implies potential and growth.

A tree grows tall, **צדיק כתמר יפרח**, like a date palm; vegetation stays low on the ground. That is our conflict as human beings: whether we look down to the grass and our base instincts, or look up to the trees, where we aspire and want to shine. That is why Tu BiShvat has come to speak to human beings too: where we want to end up is as a fruit tree, not just vegetation.

Summary

1. **Public Torah reading** goes back to **Hakhel** (Moshe) and **Ezra**.
2. **Monday, Thursday and Shabbat** readings are an institution of **Moshe** (Rambam, Hilchot Tefillah 12; Bava Kama: "three days without water"), on Monday and Thursday because those were days of forgiveness after the Golden Calf. **Shabbat Mincha** is **Ezra's**, for the *yoshvei keranot*: those who miss the weekday readings (Rashi) or those idling on Shabbat afternoon (Meiri, more convincing).
3. **Annual cycle** in Bavel, **triennial** in Eretz Yisrael (still in Egypt in the twelfth century); universal annual cycle by the thirteenth or fourteenth century. **Simchat Torah** is really the second day of Shemini Atzeret.
4. Kriat HaTorah is a **communal obligation**; an individual who misses a portion need not make it up.
5. **Aliyot:** 3, 4, 5, 6, 7, adding only on Yom Tov and Shabbat. A Kohen **cannot forgo** the first aliyah but may leave; never pressure him. The Rambam put a Talmid Hacham before an ignorant Kohen; the Shulchan Aruch records the opposite **minhag**. With no Kohen, a Levi may go first; never a Levi after a Yisrael, never two Kohanim or Levi'im in a row; with no Levi, the same Kohen is called again.
6. **Women's aliyot:** permitted in principle (Gemara, Shulchan Aruch) but not done because of **kevod hatzibur**, the embarrassment of implying the men can't read (Ritva, Rabbeinu Avraham Min HaHar), not immodesty (Levush) and certainly not *kol isha* (Hacham Ovadia). Hacham Ben Zion's family-minyan suggestion and Hacham Ovadia's "called by name" case explain why the Shulchan Aruch records it. Today it is not done, as **minhag** and because of its political associations; Rav Moshe Feinstein's test of sincerity.
7. **Tu BiShvat:** be a fruit tree, not a vegetable (Maharal).

Coming Up

- **Next week:** children's aliyot and the Haftarah, then the completion of tefillah: **Musaf** and the concept of the sacrifices.
- **After the series:** a new series on **Hebrew grammar**. "You may think this is simple and basic. It's absolutely not." Grammar is so basic that no one talks about it, because it is assumed you know it, but you are not meant to study Torah without knowing how to read properly.

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